

Shiv Om Pandey v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 18 September 2024 · 2024:AHC-LKO:64278-DB · WRIT - C No. - 8016 of 2024 · **Fresh speaking assessment after objections; demand kept in abeyance.**

HEADNOTE

On a meter-bypass demand of Rs.4,34,633, the Lucknow Bench directed the assessing officer to consider objections the consumer said he had sent by registered post and to pass a fresh reasoned and speaking final assessment within two weeks, keeping the demand notice in abeyance for four weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Shiv Om Pandey took a house connection in 2017. It was disconnected on 17 January 2023 for dues of Rs.19,381, which he paid with reconnection charges. A letter of 8 February 2023, based on a checking report of 18 January 2023 that the prayer linked to his brother's premises, alleged meter-bypass theft. He said objections posted on 22 February 2023 were ignored. A demand of 3 August 2024 sought Rs.4,34,633. The licensee said a final assessment of 23 January 2024 had issued and the objections were never received.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

Theft assessment: consider posted objections and pass a fresh speaking final order

HOLDING

Where the consumer asserts that objections to a provisional meter-bypass assessment were sent by registered post and the licensee denies receipt, the assessing officer must consider those objections and pass a fresh reasoned and speaking final assessment; the demand notice remains in abeyance until that decision or for four weeks, whichever is earlier. ¶ 6

PRINCIPLE TAGS

clause-8.1b-theft-notice-natural-justice The meter-bypass allegation was sent back so that objections the consumer said were posted on 22 February 2023 would be considered before a fresh reasoned and speaking final assessment, with the demand kept in abeyance in the meantime. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SECTION 126(3) WAS BREACHED FOR WANT OF A FINAL ASSESSMENT WITHIN THIRTY DAYS OF THE PROVISIONAL ORDER

Counsel said only a demand notice had issued. The licensee said an assessment dated 23 January 2024 had issued. The Court did not decide that dispute. ¶ 4-6

NOT DECIDED — WHETHER CLAUSE 6.8(B)(I) OR CLAUSE 8.1(B) GOVERNED, AND WHETHER THE BYPASS ALLEGATION AND THE DEMAND OF RS.4,34,633 WERE JUSTIFIED

Both clauses were invoked. The Court directed a fresh assessment without a finding on the applicable clause or on the merits. ¶ 4-6